FORM 32 (RULE 8-1 (4)) - NOTICE OF APPLICATION (PAGE 1 OF 3)

Court File No. S-240123 / Vancouver Registry | Applicant: Acme Enterprises Ltd.

TAKE NOTICE that an application will be made by the Applicant to the presiding associate judge in chambers at the Courthouse, 800 Smithe Street, Vancouver, British Columbia, on November 15, 2026, at 9:45 AM.

PART 1: ORDERS SOUGHT

1. The Defendant, Pacific Developments Corp., shall, within fourteen (14) days of the date of this Order, amend its List of Documents delivered on August 12, 2026, and deliver a Supplementary List of Documents in Form 22, verified by affidavit, listing all documents in its possession, custody, or control relating to any matter in question in this action, and specifically:

   (a) All unredacted quarterly project accounting ledgers, progress draw requests, and certified cost audits relating to the development project at 1200 Burrard Street, Vancouver, BC (Jan 2025 - Jun 2026);

   (b) All internal correspondence and emails between Defendant John Doe and project quantity surveyor Apex Cost Consultants Inc. regarding budget overruns and contingency drawdowns;

   (c) All banking statements and wire transfer confirmations for Canadian Commercial Bank Account No. 4410-*** evidencing the disbursement of the $1,500,000 contingency reserve fund.

2. The Defendant shall make the documents available for inspection within 7 days pursuant to Rule 7-1(15).

3. In the event of privilege claims, deliver a detailed privilege log with author, date, and grounds.

4. Costs of this application shall be in the cause.

FORM 32 (RULE 8-1 (4)) - NOTICE OF APPLICATION (PAGE 2 OF 3)

Part 2: Factual Basis

PART 2: FACTUAL BASIS

1. The Plaintiff and the Corporate Defendant entered into a written Joint Venture Development Agreement dated January 15, 2025, governing the construction of a 28-storey tower at 1200 Burrard Street, Vancouver.
2. Pursuant to Clause 4.2 of the Agreement, the Corporate Defendant was appointed Managing Partner and was under strict contractual and fiduciary obligations to maintain transparent, unredacted accounting books.
3. On May 10, 2026, the Plaintiff contributed $1,500,000 into the project contingency account pursuant to a cash-call notice issued by the Individual Defendant, John Doe.
4. On August 12, 2026, the Corporate Defendant delivered its initial List of Documents, which listed high-level summary spreadsheets but entirely omitted underlying bank statements and general ledgers.
5. On September 14, 2026, counsel for the Plaintiff delivered a formal deficiency letter demanding production.
6. By letter dated September 28, 2026, the Defendants refused production, alleging 'commercial sensitivity'.
7. The documents sought are directly material to paragraphs 14 through 22 of the Notice of Civil Claim, wherein the Plaintiff pleads breach of contract, unauthorized redirection of contingency funds, and breach of duty.
8. The requested production is proportionate under Rule 1-3, having regard to the $1,500,000 at stake and the fact that electronic bank records can be produced in PDF format with minimal expense.

FORM 32 (RULE 8-1 (4)) - NOTICE OF APPLICATION (PAGE 3 OF 3)

Part 3: Legal Basis & Part 4: Material Relied On

PART 3: LEGAL BASIS

1. Supreme Court Civil Rule 7-1(11): The Court’s jurisdiction to order a supplementary list of documents.
2. Supreme Court Civil Rule 7-1(18): The Court’s power to order production and inspection of specified documents.
3. Supreme Court Civil Rule 1-3: Proportionality governing pre-trial disclosures.
4. Practice Direction 72 (PD-72) and Practice Direction 73 (Virtual Chambers).
5. Leading Jurisprudence: Kalin v. Campbell, 2014 BCCA 441; and Smith v. Jones, 2024 BCCA 123.

PART 4: MATERIAL TO BE RELIED ON

1. Affidavit #1 of Jane Smith, sworn October 25, 2026, and the exhibits attached thereto.
2. Notice of Civil Claim filed June 15, 2026, and Response to Civil Claim filed July 20, 2026.
3. Defendant Pacific Developments Corp.’s List of Documents dated August 12, 2026.

The Applicant estimates that the application will take twenty-five (25) minutes.
Dated: October 29, 2026 | Jane Smith, Counsel for the Plaintiff (Applicant)